

PRE-WRITING PIPELINE OUTPUT

Internal Architecture Document — Not For Publication | Bible Sections 4, 5, 6, 7, 15, 18, 22, 25

1. TOPIC INTELLIGENCE (SECTION 4)

Topic: How Much Is My Personal Injury Case Worth?

PRIMARY SEARCH QUERY

"how much is my personal injury case worth"

QUERY INTENT TYPE

Evaluative/Informational — reader needs to understand the variables that determine settlement value, with strong implicit intent to assess a specific situation (their own) and evaluate any offer they have received or anticipate.

READER CLUSTER

Person who has been injured (any case type — car accident, slip and fall, workplace, medical negligence) and is attempting to determine whether their potential claim has financial merit, whether to pursue it, or whether a settlement offer they have received is fair. Sub-cluster: person who has already received an early settlement offer and is deciding whether to accept. High financial anxiety, low legal literacy, urgency driven by medical bills or income loss. Often searching before or instead of calling an attorney.

ADJACENT QUERIES

- "average personal injury settlement amount"
- "personal injury settlement calculator"
- "how do insurance companies calculate settlement offers"
- "what damages can I recover in a personal injury case"
- "how long does a personal injury settlement take"
- "should I accept personal injury settlement offer"
- "pain and suffering calculation method"

2. COMPETITIVE DIFFERENTIATION (SECTION 5)

Gap Analysis: Top-ranking content on this query fails in three consistent ways. (1) The multiplier method is presented as if it is a legal formula — "multiply your medical bills by 1.5 to 5" — with no explanation that it is an industry approximation, not a legal standard, and no guidance on what actually determines where in that range a case lands. (2) Nobody explains the structural hierarchy of damages — that economic damages set the floor, non-economic damages create the range, and the ceiling is typically the at-fault party's insurance policy limits. (3) The role of comparative fault as a mandatory downward adjustment to every case value is almost universally omitted, even though it is one of the most consequential variables.

DIFFERENTIATION STRATEGY

This article replaces the multiplier shortcut with a genuine variable-by-variable framework: economic damages as the calculable floor, non-economic damages as the range driver, policy limits as the practical ceiling, and comparative fault as the reduction mechanism. Every variable is explained with enough specificity that a reader can apply it directionally to their own situation — while being honest that precise value requires attorney review of specific facts.

3. SEO INTELLIGENCE OUTPUT (SECTION 6)

PRIMARY KEYWORD

how much is my personal injury case worth

SECONDARY KEYWORDS

- personal injury settlement amount
- personal injury damages calculator
- pain and suffering calculation
- how do insurance companies calculate settlements
- personal injury case value factors

FEATURED SNIPPET STRATEGY

Direct answer opening in H1 section targets paragraph snippet for primary query. Damages table structure targets featured list snippet for "what damages can I recover" adjacent query. "What the Multiplier Method Actually Is" section targets snippet for pain and suffering calculation queries. FAQ close targets FAQPage rich result.

SCHEMA TYPES APPLICABLE

FAQPage (close section), Article. Consider HowTo schema for the "What Determines Where in the Range" section if structured as steps by developer.

SEMANTIC ENTITIES REQUIRED

- Economic damages / special damages
- Non-economic damages / general damages
- Pain and suffering
- Lost wages / lost earning capacity
- Future medical expenses
- Punitive damages
- Policy limits / liability coverage
- Comparative negligence / contributory negligence
- Statute of limitations
- Release of liability
- Damages cap
- Per diem method
- Multiplier method

4. JURISDICTION SENSITIVITY CLASSIFICATION (SECTION 7)

Tier 2 — Moderate-High Variation. Core damages categories are consistent nationally. The following vary significantly by state and require explicit jurisdictional qualification in the article: (1) Non-economic damages caps — many states cap pain and suffering in medical malpractice cases; some cap non-economic damages in all personal injury cases. (2) Comparative vs. contributory negligence — pure contributory negligence states (MD, AL, VA, NC, DC) bar recovery entirely if the plaintiff has any fault; pure comparative negligence states allow recovery regardless of fault percentage; modified comparative states bar recovery above 50% or 51% plaintiff fault. (3) Punitive damages standards and caps vary widely by state. Article addresses all three with explicit jurisdiction caveats.

5. E-E-A-T / YMYL CLASSIFICATION (SECTION 18)

YMYL Category: Legal-Financial. Risk Level: HIGH. A reader who accepts an early settlement offer based on a misunderstanding of their case value permanently waives all future claims. A reader who overestimates their case value based on average settlement figures may reject a reasonable offer and incur litigation costs. Both errors have significant financial consequences. The article must be precise about what can and cannot be determined without attorney review of specific facts. All figures presented are general reference ranges, not predictions. Medical claims (e.g., regarding injury documentation) reflect standard evidentiary practice, not medical advice.

6. CONVERSION ARCHITECTURE (SECTION 15)

Primary Conversion Goal: Attorney consultation inquiry. Micro-conversion 1 (complexity bridge): Placed at the comparative fault section — the point at which the reader realizes their case value may be lower than they expected, and that determining by how much requires attorney analysis. Micro-conversion 2 (deadline urgency): Placed at the statute of limitations note in the close. Close Formula: Formula 3 — Complexity Gap + Specific Risk Named + CTA. The gap the article names: you cannot know whether a settlement offer is fair without knowing the real value, and you cannot know the real value without an attorney reviewing the specific facts.

7. DECAY RISK CLASSIFICATION (SECTION 21)

Tier 2 — Annual Review. Trigger events: any state legislative change to comparative negligence standard, damages cap legislation in target jurisdiction, significant appellate decisions on pain and suffering calculation methodology.

8. FIRM PERSONA TYPE (SECTION 22)

Type 3 — Regional Personal Injury Plaintiff Firm. Calibrations: plain-language authority, financial anxiety acknowledgment in hook and opening sections, honest framing of variables (including the ones that lower case value, not just raise it), CTA framed around fairness evaluation rather than litigation pressure.

How Much Is My Personal Injury Case Worth?

This is the question behind almost every other question people ask when they've been injured. And it deserves a direct answer — not a formula, not a disclaimer, and not a number pulled from an average that has nothing to do with your specific situation.

The direct answer is: personal injury case value is determined by a specific set of variables, and understanding those variables is what allows you to evaluate any offer you receive, any advice you're given, and any decision you're being asked to make. This guide walks through each variable — what it is, how it moves the number, and what controls it — so that you can approach your situation with an accurate picture of what's actually at stake.

No article can tell you what your specific case is worth. That determination requires a lawyer reviewing your actual facts, your actual medical records, and the applicable law in your state. What this article can do is give you the framework that makes that conversation — and any settlement evaluation — meaningful rather than arbitrary.

The Two Categories Every Personal Injury Case Is Built On

Every personal injury case, regardless of how it happened, rests on two categories of damages. Understanding the distinction between them is the foundation for understanding any settlement number you encounter.

Economic Damages: The Calculable Floor

Economic damages — sometimes called "special damages" — are the financial losses that come with a dollar figure attached. They include:

- Medical expenses already incurred: emergency care, hospitalization, surgery, physical therapy, prescriptions, and any treatment directly related to the injury
- Future medical expenses: ongoing treatment, anticipated surgeries, long-term care, and rehabilitation projected to be required
- Lost wages: income lost because the injury prevented you from working, documented by pay stubs and employer records

- Lost earning capacity: if the injury permanently reduces your ability to earn — a construction worker who can no longer perform physical labor, a surgeon who can no longer operate — this projects the lifetime income differential
- Out-of-pocket costs: transportation to medical appointments, home care assistance, adaptive equipment, and other documented expenses caused by the injury

Economic damages are the floor of your case value. They are the number that can, in principle, be calculated with precision — though "in principle" does important work in that sentence. Past medical bills are straightforward. Future medical expenses and lost earning capacity require expert projections, and those projections can vary significantly. The precision of your economic damages case depends substantially on the quality of your documentation and the expertise of the professionals supporting it.

Non-Economic Damages: Where the Range Lives

Non-economic damages — sometimes called "general damages" — cover the losses that are real but do not come with a receipt. They include:

- Pain and suffering: physical pain, both past and ongoing, caused by the injury and its treatment
- Emotional distress: anxiety, depression, post-traumatic stress, and other psychological consequences of the injury or the event that caused it
- Loss of enjoyment of life: the inability to participate in activities — sports, hobbies, relationships — that were part of your life before the injury
- Loss of consortium: the impact of the injury on your relationship with a spouse, recognized as a separate damages category in most states

Non-economic damages are where the range in personal injury values comes from. Two people with identical medical bills can have very different case values because their non-economic damages differ — because of injury severity, permanence, age, occupation, and the specific impact on their lives. There is no universal formula for calculating these damages, though there are methods that attorneys and adjusters use as approximations, which the next section addresses.

Economic Damages (Calculable)	Non-Economic Damages (Range-Driven)
• Medical bills — past • Medical bills — future (projected) • Lost wages — past • Lost earning capacity — future • Out-of-pocket expenses	• Pain and suffering • Emotional distress • Loss of enjoyment of life • Loss of consortium • Disfigurement / permanent scarring

The Multiplier Method: What It Actually Is

If you have searched this topic before, you have almost certainly encountered the following: "insurance companies multiply your medical bills by a number between 1.5 and 5 to calculate pain and suffering." This is the multiplier method, and it is worth understanding accurately — because it is widely used, widely misunderstood, and frequently misapplied in ways that lead people to inaccurate estimates of their case value.

The multiplier method is an industry approximation — not a legal standard, not a court-approved formula, and not a contractual obligation. Insurance adjusters use it as a starting point for internal valuation. Attorneys use it as a rough check. Neither party is bound by it.

The method works like this: total your economic damages, then multiply by a number that reflects the severity and permanence of the non-economic impact. A minor soft-tissue injury with full recovery might draw a multiplier of 1.5. A permanent spinal injury that changes how a person can work and live might draw a multiplier of 5 or higher.

What the multiplier method does not tell you is what multiplier your case warrants. That determination is where the real analysis lives — and it is controlled by the variables in the next section.

The Per Diem Method

A second calculation method assigns a daily dollar value to pain and suffering — often a daily wage — and multiplies it by the number of days the plaintiff has suffered and is expected to continue suffering. This method can produce higher non-economic figures for injuries with long recovery timelines, and is sometimes used alongside the multiplier method as a check. Like the multiplier, it is an approximation and not a legal formula.

What Actually Determines Where in the Range Your Case Falls

The following variables are what attorneys, adjusters, and juries use — explicitly or implicitly — to determine case value. Understanding each one is what makes it possible to evaluate any number you encounter rather than simply accepting it.

1. Liability Clarity

How clearly the other party was at fault for your injury is one of the most powerful variables in case value. A rear-end collision in which the other driver was cited by police, has no comparative fault argument, and caused documented injury — that case carries a very different value than an accident where fault is disputed, where multiple parties may share responsibility, or where the circumstances are ambiguous.

Clear liability increases case value by removing a primary argument for reducing the settlement. Disputed liability creates settlement uncertainty, lengthens the process, and gives the opposing party leverage to offer less on the grounds that a jury might not assign full fault to them.

2. Your Percentage of Fault

This variable surprises many people, and it is one of the most important ones to understand before evaluating any offer.

Every U.S. state uses one of three negligence frameworks to handle situations where the injured party contributed to what happened:

- Pure comparative negligence: your recovery is reduced by your percentage of fault, regardless of how high that percentage is. If you are 40% at fault and your damages are \$100,000, you can recover \$60,000.
- Modified comparative negligence: same reduction applies, but if your fault exceeds a threshold — typically 50% or 51% — you cannot recover at all.
- Pure contributory negligence: if you have any fault whatsoever — even 1% — you cannot recover anything. This is the rule in a small number of states, including Maryland, Alabama, Virginia, North Carolina, and the District of Columbia.

The practical impact: if the opposing insurer can credibly argue that you share fault — that you were speeding, that you were not watching where you were walking, that you ignored a warning — that argument directly reduces the value of any offer they are willing to make. The percentage they can attribute to you is a negotiated variable in most cases, which is why the framing of fault at the scene, in medical records, and in any statements matters enormously.

Jurisdiction Note: Know Your State's Rule

Whether your state uses pure comparative, modified comparative, or contributory negligence has a direct effect on your case value and your ability to recover anything. This is not a background legal fact — it is one of the first things an attorney assesses when evaluating your case. If you are unsure which rule applies in your state, this is a question an attorney can answer in a free initial consultation.

3. Injury Severity and Permanence

The more severe and permanent the injury, the higher the non-economic damages — and therefore the higher the multiplier and the overall case value. The law recognizes a distinction between injuries that heal and injuries that change the course of a life.

A soft-tissue injury with full recovery in six to eight weeks produces a lower damages range than a herniated disc requiring surgery and producing ongoing pain. A traumatic brain injury, a spinal cord injury, an amputation, or a permanent disability produces a

substantially higher range — because the pain and suffering, loss of enjoyment, and impact on earning capacity extend over a lifetime.

Permanence is documented through medical records, physician opinions, and in serious cases, independent medical examinations. The quality of that documentation directly affects the ability to establish and defend the damages figure.

4. Consistency of Medical Treatment

This variable is not about the quality of your medical care — it is about the pattern. Insurance adjusters scrutinize the timeline between the accident and your first medical appointment, and the consistency of treatment thereafter. Gaps in treatment — missed appointments, delays in seeking care, periods where no treatment was pursued — are used to argue that the injury was not serious, that it resolved, or that subsequent treatment was not related to the accident.

Consistent, documented medical treatment from the time of injury through the resolution of the acute phase creates the evidentiary record that supports the damages claim. Inconsistent treatment — whatever the reason — creates arguments the opposing party will use to reduce the number.

5. Insurance Policy Limits: The Practical Ceiling

This is the variable most people do not know about, and it is often the most controlling factor in determining the actual settlement amount.

In most personal injury cases involving a private individual as the defendant — a driver, a property owner — the real ceiling on recovery is the defendant's liability insurance policy limit. A defendant with a \$25,000 bodily injury liability policy is, in practical terms, unlikely to pay more than \$25,000 in a settlement, regardless of the actual damages — unless they have significant personal assets worth pursuing in litigation, which most individuals do not.

This is why a case with \$80,000 in economic damages and a strong liability position may settle for \$25,000: because the at-fault party only has \$25,000 in coverage. Your own uninsured/underinsured motorist coverage, if you have it, may provide an additional source of recovery in these situations. Understanding the policy landscape is essential to understanding the realistic range of what is recoverable.

6. Jurisdiction-Specific Damages Caps

Some states impose statutory caps on non-economic damages — limits on how much can be awarded for pain and suffering regardless of how severe the injury. These caps apply most commonly in medical malpractice cases, but some states extend them to all personal injury claims. Where a cap exists, it acts as an absolute ceiling on non-economic recovery, and it directly affects case value in high-severity cases.

Caps vary dramatically by state. Some have been struck down by state supreme courts as unconstitutional. Others remain in force. An attorney practicing in your jurisdiction will know whether a cap applies to your case type and, if so, at what level.

7. Quality and Completeness of Documentation

Case value is only realized to the extent it can be proven. A claimant with \$150,000 in legitimate economic damages who has incomplete medical records, no wage documentation, and no expert support for future treatment projections will not recover \$150,000. Documentation is not a procedural detail — it is the evidence base for every damages figure you assert.

This is one of the most consistent advantages of early attorney involvement: an experienced personal injury attorney knows what documentation is needed, identifies gaps while they can still be filled, and retains the experts whose opinions support the damages numbers. Attempting to reconstruct documentation after the fact is consistently less effective.

What Early Settlement Offers Actually Mean

If an insurance adjuster has already contacted you with a settlement offer — particularly in the days or weeks following an accident — there is something important to understand about what that offer represents.

Early settlement offers are made before the full extent of your damages is known. Before your medical treatment is complete, before future medical needs are projected, before the full impact on your earning capacity is established. They are made at the moment when your information is least complete and the insurer's is most complete. Adjusters are experienced in early settlement negotiations. Most injured people are not.

An early offer is not a fair evaluation of your case. It is an assessment of the minimum amount that can close the claim before the claimant understands their damages. This is not an accusation — it is the structural incentive that governs early settlement activity.

The document you sign when you accept a settlement is called a release of liability. It is binding and, in virtually all cases, permanent. Signing a release for \$10,000 and then discovering six months later that you require surgery for an injury from the same accident means you cannot go back for the surgery costs. The release closed the claim.

Before You Sign Anything

No timeline requires you to accept a settlement offer within days or weeks of an accident. Statutes of limitations in most states give you two to three years to file a lawsuit. The pressure to settle quickly is a negotiating posture, not a legal obligation. What you cannot undo is accepting a release before your damages are fully known.

When Case Value Increases Significantly: Punitive Damages and Catastrophic Injuries

The framework above describes the structure of most personal injury cases. Two categories of cases can produce substantially higher values.

Punitive Damages

In cases where the defendant's conduct was not merely negligent but reckless, malicious, or intentional — a drunk driver who caused the accident, a manufacturer who concealed a known product defect, a property owner who deliberately created dangerous conditions — courts may award punitive damages above and beyond compensatory damages. Punitive damages are designed to punish the defendant and deter similar conduct, not to compensate the plaintiff.

The standard for punitive damages is significantly higher than for ordinary negligence, and their availability, standards, and caps vary substantially by state. Not every serious case involves conduct that meets the threshold. But where it does, the damages exposure for the defendant is materially different — which also affects settlement leverage and case value.

Catastrophic Injuries

Cases involving traumatic brain injury, spinal cord injury, severe burns, amputations, permanent disability, or wrongful death sit in a different category for damages purposes. The lifetime medical costs, the lost earning capacity over decades, and the non-economic damages for injuries that permanently alter a person's ability to experience and engage with life — these figures are of a different magnitude than the typical personal injury case.

Catastrophic injury cases also typically require a higher level of expert support: life care planners who project decades of future medical needs, economic experts who quantify lifetime earning capacity loss, and often medical specialists whose testimony supports the permanence and severity findings. The investment in expert support is justified by the damages at stake.

What You Need to Know Before Accepting Any Number

The question is not whether the settlement offer you received is fair in some abstract sense. The question is whether it reflects the actual value of your claim — all of your economic damages, documented and projected; your non-economic damages at the appropriate range for your injury; reduced correctly for any comparative fault and policy limit constraints; and evaluated against the jurisdiction-specific rules that apply to your case.

You cannot answer that question without knowing your damages. You cannot know your damages without completing medical evaluation and treatment. You cannot evaluate the comparative fault allocation without attorney analysis of the facts. You cannot know the policy limits without a formal demand or legal process. And you cannot know the jurisdiction-specific rules without someone who practices in that jurisdiction.

This is not an argument that every injured person needs to sue. Many cases settle appropriately, quickly, and without litigation, when the parties have accurate information and the negotiation is conducted with the damages actually established. The argument is that accepting a settlement before you have accurate information is accepting a number you cannot evaluate — and that the release you sign closes your options permanently.

The Most Valuable Thing You Can Do Right Now

If you have been injured and you are trying to figure out what your claim is worth — whether to pursue it, whether an offer is fair, whether the process makes sense for your situation — the most useful single step is a conversation with a personal injury attorney who can review the actual facts.

Not because every case requires litigation. Not because attorneys are the only path. But because the framework this article describes — economic damages, non-economic damages, liability clarity, comparative fault, policy limits, damages caps, documentation quality — applies differently to every case, and applying it to yours requires someone who knows your facts, your jurisdiction, and the specific evidence available.

Most personal injury attorneys offer free consultations and work on contingency — meaning their fee comes from a portion of the recovery, with no cost to you unless there is a recovery. A consultation is not a commitment to file a lawsuit. It is the information that allows you to make a genuinely informed decision about your options — and about whether any number on the table is actually fair.

Your rights in this situation are time-sensitive. Statutes of limitations in most states run from the date of injury, and once they expire, they cannot be revived. The sooner you have an accurate picture of your case, the more options remain open.

LEGAL INFORMATION NOTICE

This article provides general legal information only and does not constitute legal advice or a prediction of case value. Personal injury law varies significantly by state. The damages categories, calculation methods, negligence frameworks, and damages caps described here are general principles — their application to any specific case depends on the facts of that case and the law of the applicable jurisdiction. Reading this article does not create an attorney-client relationship. For an evaluation of a specific claim, consult a licensed personal injury attorney in your state.

ATTORNEY REVIEW PACKAGE

Section 26 — Human Review Integration Protocol | Complete for Model 1 & Model 2 Review

SOURCE INVENTORY — CLAIMS REQUIRING VERIFICATION

- Claim: Contributory negligence states listed as MD, AL, VA, NC, DC — Verify current status. These are accurate as of 2024 but any legislative change in target state must be confirmed before publication.
- Claim: Modified comparative negligence threshold described as 'typically 50% or 51%' — Accurate as a general statement. Some states use different thresholds. Verify specific threshold in target jurisdiction before publication.
- Claim: Statutes of limitations described as 'two to three years in most states' — Accurate as a general range; verify specific figure for target state (LA = 1 year, TN = 1 year for some claim types, ME = 6 years). Do not publish without confirming jurisdiction-specific figure.
- Claim: Multiplier range described as '1.5 to 5' — This is an accurate representation of the commonly cited industry range. Not a legal standard and article correctly frames it as such.
- Claim: Damages caps described as applying 'most commonly in medical malpractice' — Accurate general statement. Verify whether target state has caps applicable to general personal injury claims.
- Claim: Per diem method described as 'often a daily wage' — Accurate as a common baseline; daily wage is not the only figure used. Article correctly frames it as an approximation.

BOUNDARY NAVIGATION MARKERS — ATTORNEY REVIEW POINTS

- Article consistently describes case value framework as directional/educational and explicitly states that specific case valuation requires attorney review. Boundary discipline is maintained throughout — no specific settlement range is predicted for any injury type.
- Comparative fault section names contributory negligence states. Attorney reviewer should confirm whether the target market includes any of these states and whether the framing is appropriate for that market.
- Policy limits discussion (Section 5, Variable 5): article states that defendants 'unlikely to pay more than policy limits unless they have significant personal assets.' Attorney reviewer may wish to adjust this framing based on local practice — some markets involve more aggressive judgment enforcement than others.
- Close CTA references 'free consultations' and 'contingency fee' — Verify this reflects the firm's actual engagement structure before publication. In some jurisdictions, contingency fees in certain case types have specific disclosure requirements.

REVIEW DEPTH CLASSIFICATION

Level 2 — Standard Review. No jurisdiction-specific statutes cited by number. Damages framework is general and accurate. Primary attorney review focus: (1) comparative/contributory negligence framing for target state, (2) SOL figure for target jurisdiction, (3) damages cap applicability, (4) CTA alignment with firm policy.

SCHEMA PREPARATION NOTE (SECTION 19)

- FAQPage schema: The following implicit Q&A pairs exist in the article and are suitable for FAQPage implementation — (Q) What are economic damages in a personal injury case? (Q) What are non-economic damages? (Q) What is the multiplier method? (Q) What is the per diem method? (Q) How does comparative fault affect my case value? (Q) What are punitive damages? Developer to format these as explicit FAQ section or implement as FAQPage schema on existing content.
- Article schema: Standard implementation. Include attorney reviewer's name as author post-review, datePublished, dateModified.
- HowTo consideration: The 'What Actually Determines Where in the Range Your Case Falls' section (Variables 1–7) can be structured as HowTo steps if developer wishes to target procedural snippet. This is optional — current paragraph format is already optimized for paragraph snippet.

AI OVERVIEW OPTIMISATION NOTES (SECTION 23)

Optimisation Intensity: HIGH. Direct answer openings are present in all variable subsections. The damages categories table is structured for potential AI Overview list extraction on 'what damages can I recover' queries. The multiplier method section opens with a definitional statement suitable for extraction. The comparative fault bullet-list explanation of three negligence frameworks is a strong AI Overview candidate for procedural queries about fault allocation.

DECAY RISK TRIGGERS

- Any change to contributory/comparative negligence standard in target jurisdiction
- New damages cap legislation in target state
- Significant state supreme court decision affecting pain and suffering calculation methodology
- Changes to contingency fee disclosure requirements in target jurisdiction